

21STCV43669 21STCV43669

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C08%2F05%2F2026

Source SHA-256: ff52d0ab2130a735b346feb9dcaaa8801ea9c3155e43e1bef8bdb531caac9472

Case Number: 21STCV43669 Hearing Date: August 5, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Allie Rose Weinstein

, et al.;

Plaintiffs,

vs.

Francisco Barrera

, et al.,

Defendants.

Case No.:

21STCV43669

Hearing Date:

August 5, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Compel Deposition of NonParty

MOVING PARTY: Plaintiffs Allie Rose Weinstein and Jeremy
Weinstein

RESPONDING
PARTY: No response

Motion to Compel
Deposition of Nonparty

The court considered the moving
papers filed in connection with this motion. No opposition was filed.

DISCUSSION

Plaintiffs Allie
Rose Weinstein and Jeremy Weinstein ("Plaintiffs") move the court for (1) an
order compelling nonparty Maximino Acosta Felix to appear for deposition, and
(2) an order to show cause re contempt.

First, the court
denies the motion to compel nonparty Maximino Acosta Felix to appear for
deposition because the deadline to have discovery motions heard was April 7,
2026, pursuant to the stipulation and order, filed October 31, 2025. (Code Civ. Proc., § 2024.020, subd. (a); stipulation
and order, filed October 31, 2025 [setting trial and continuing deadlines].)
The court's subsequent orders continuing trial did not extend the discovery motion
cutoff. (Minute orders filed February 26, 2026; June 8, 2026; July 2, 2026.)
Plaintiffs' motion is beyond the discovery motion hearing cutoff.

In addition, Plaintiff's motion to compel was not personally served on

the nonparty deponent, as required by California Rules of Court, rule 3.1346.

Second, Plaintiffs also request that the court issue an order to show cause re contempt.

“Disobedience of any lawful judgment, order, or process of the court” is contempt of the authority of the court. (Code Civ. Proc., § 1209, subd. (a)(5).) “As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order. [Citations.]” (Wanke, Industrial, Commercial, Residential, Inc. v. Keck (2012) 209 Cal.App.4th 1151, 1168 [internal citation omitted].)

The court (1) finds that the declaration filed by Plaintiffs in support of their motion (Declaration of Taylor R. Porter, filed December 31, 2025) does not allege all of the elements of contempt because Plaintiffs have not alleged facts establishing that nonparty Maximo Acosta Felix had the ability to comply with the deposition subpoena and willfully failed to comply with the deposition subpoena, and therefore (2) denies Plaintiffs’ motion to issue an order to show cause re contempt because the declaration submitted in support of the motion does not state a cause of action for contempt. (Code Civ. Proc., §§ 1209, 1211, subd. (a) [“When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt”].)

ORDER

The court DENIES plaintiffs Allie Rose Weinstein and Jeremy Weinstein’s motion for (1) an order compelling nonparty Maximino Acosta Felix to appear for deposition, and (2) an order to show cause re contempt.

The court orders plaintiffs Allie Rose Weinstein and Jeremy Weinstein to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 5, 2026

Robert B. Broadbelt III

Judge of the Superior Court